

Federal Maritime Commission Washington DC

Office of Administrative Law Judges

Mohammad Rana,	}	
Complainant	}	Docket No. 19-03
	}	
V.	}	
	}	
Michelle Franklin	}	Date : Jan 23 , 2020
The Right Move, Inc	}	
Respondent	}	

BEFORE : Honorable Erin M. Wirth , Administrative Law Judge .

Motion for Finding of facts alleged by the complainant and default decision- Response.

Although the Complainant requested several times for discovery and motion to compel, the respondent refuse to share any information requested with another individual that are not in direct relation to the case or his complaint.

- A. Because it is indeed irrelevant to the case or its outcome.
- B. The Respondent was not aware that she needs to reply to the complainant unless was instructed to by her honor.
- C. The Respondent believe that the complainant has ulterior motive to find personal information about her and that it jeopardies her safety.

On December 9, the Complainant file his second motion to compel few minutes after the respondent refused to provide a personal I.D. while in process of mediation.

On Jan 6 , your honorable Judge granted the complainant the second motion to compel , and the complainant **who suggested** an amount for settlement which was agreed by the respondent , backed out of this agreement in desire to receive further details and information about the respondent , rather than be compensated .

Therefore, the complainant has an ulterior motive to seek additional information rather than close the case.

The Complainant state that requested documents 1 through 11 , are the core of his complaint .

As far as my understanding, the complainant requested compensation for Ocean freight, Demurrage and additional fees occurred while In the process of releasing the container in Pakistan.

Since both parties agree that the ocean was not prepaid, how are documents 1-11 are the core of this complaint?

Documents 1-11 are relevant only is the respondent insist the payment was made on her behalf , but as said, we all agree that it was not , and therefore , all correspondent, names of people and any additional details are irrelevant.

Furthermore, The complainant request additional information about the company, The Right Move, Inc to establish its legality .

The Right Move, Inc had NVOCC license upon conducting business with the complainant , The NVOCC license number was provide on all E-mails exchanged with the complainant and clearly the complainant confirms that the license was valid and in place upon conducting business, or otherwise he would have not file a claim with the FMC.

By requesting company details, the complainant question the FMC licensing process, as the FMC does their background check and require proper company paper work , as well as Bond and Tariff to be in place while operating with an NVOCC license.

Since the Complainant chose to file a complaint with the FMC, he needs to accept that the Right Move, inc is indeed an established , legally operated company and that the FMC already checked and confirmed that .

Therefore, no company documents are relevant to the case and will not be shared with an individual (once again, especially one that has an ulterior motive)

The Complainant present false accusations about the integrity of the respondent, and state he “ believes” there are other complaints and lawsuits against the respondent.

He bring the example of Sameer Madhu .

Sammer Madhu was a former customer who stole the container. Failed to pay her shipping costs, and bribed an agent in New Zealand to pick up the container on her behalf.

Upon dealing with the local agent in New Zealand , Ms Sameer had no money to pay port fees, and as a result her shipment ended up in storage . Ms. Sammer was sued in NZ and lost great deal of money , and a court order to pay the shipment costs. Ms. Sammer has no money so she was involved in an insurance fraud as well. **It is disturbing that the complainant base his accusations upon some information he may find online from a person who is clearly in the wrong .**

FMC has records of this case and are aware of Ms. Sammer failure to pay any shipping costs, and her insurance fraud.

Facts Alleged by the Complainant:

1. Both agree the complainant paid his shipment in full prior to loading the container. if the respondent had any intentions of not paying the ocean costs, why would the respondent bring the container? book a shipment with another company under her NVOCC license knowing there is a personal Liability ? why would the respondent pull the container from the port at origin, occurring \$1,080 cost on top of the ocean costs ? why would the respondent make only \$ 300-\$400 rather than keep the full \$2,595 she was paid upfront and not bring a container at all ??? Why would the respondent not remove all cargo from the container and sell it prior to shipping to make more money ?

These accusations are completely inappropriate, the complainant establish nothing with these accusations as none of it is true !

2. Ocean is being booked prior to payment, payment comes later , no problem here .
3. The responded benefited from handling a shipment, using her knowledge and her license , its called a business ! the respondent made roughly \$300 profit from this shipment for her time . the respondent Is aware of her personal liability for shipping costs, its called a Bond!

A bond is a personal guarantee and if one fail to pay shipping costs, the bond gets involved. The Complainant believe that the responded packed up \$1,025 for the ocean costs not paid, but fail to understand that the respondent needs to pay it to the Insurance company upon his claim . How is this a benefit?

4. This is a false accusation, the respondent was available by E-mails , phone, and communicated with the responded through out the whole process. The respondent explained and shared her financial hardship with the complainant , she explained the urgency of paying the ocean costs directly and in time, she offered to compensate the complainant shortly after he needed to pay the ocean again . she was trying to help the complainant gain more free days from the steamship line upon container arrival . how is any of this bad faith ?
5. Agree, the complainant had to pay the ocean directly
6. The respondent failed to pay ocean costs. But she advised the complainant what needs to be done and how this will be resolved within a timely manner !
7. False accusations, the Right Move Inc, is an Incorporated entity belongs to an individual , just like million of business around the world !
8. As a sole owner of a closed failed company , I also bare the debt of it .
9. The Respondent is personally liable through her bond, that's exactly why there is a BOND !

The rest of the complainant accusations are a poor attempt to convince your honorable judge that I am disobedient, or disrespectful to the process, which is of course not true .

I may have trouble understanding the process but that's all it is!

I didn't know I need to respond to his 10 pages every time he submits one, unless I was told to.

In conclusion,

The complainant has a very vivid theory of how I conduct unethical business on a regular basis .

How I gain from it time after time .

The complainant knows nothing about shipping, how demanding, how much hard work it is , how you have to plan 5 steps a head of everybody to make sure all goes smooth . how amazing and empowering is to help individuals move around the world and be there for them when they need you the most. How amazing it feels that people put their trust in you, and you move mountains to accomplish success time after time ! how incredible it feel to receive thank you letters for all your doing!

The Right Move, Inc was in business for over 9 years, moved thousands of people , if I am all that the complainant picture, I would have had thousands of complaints and issues and wouldn't last 2 months in this business.

The Complainant is entitle to ocean costs refund + Demurrage of 5 days caused by the delay of releasing the ocean, nothing else if related what so ever to his additional expenses nor should affect the outcome of this case.

Thank you ,

Michelle Franklin

